

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Madeleine Matz	Team: Squad #02	CCRB Case #: 202207773	☐ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/14/2022 8:15 PM, Friday, 01/06/2023 10:05 AM	Location of Incident: 280 Park Hill Avenue; CCRB	18 Mo. SOL 5/14/2024	Precinct: 120		
Date/Time CV Reported Tue, 11/15/2022 3:23 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 11/15/2022 3:23 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Manuel Salvatierra	22027	946213	SRG 05

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Leon Lewis	28932	936946	SRG 05

Officer(s)	Allegation	Investigator Recommendation
A . PO Manuel Salvatierra	Abuse: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police Officer Manuel Salvatierra detained § 87(2)(b)	
B . PO Manuel Salvatierra	Abuse: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island,, Police Officer Manuel Salvatierra refused to provide his name to § 87(2)(b)	
C . PO Manuel Salvatierra	Abuse: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police Officer Manuel Salvatierra refused to provide his shield number to § 87(2)(b)	
D . PO Manuel Salvatierra	Abuse: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island,, Police Officer Manuel Salvatierra threatened to issue summons to § 87(2)(b)	
E . PO Manuel Salvatierra	Abuse: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island,, Police Officer Manuel Salvatierra improperly used his body-worn camera.	
F . PO Manuel Salvatierra	Untruthful Stmt.: On January 6th, 2023, Police Officer Manuel Salvatierra provided a false official statement to the CCRB.	

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's website on November 15th, 2022 (BR 01).

On November 14th, 2022, at approximately 8:15 p.m. § 87(2)(b) was driving her girlfriend's mother's 2006 Honda Civic, which had a broken front headlight, eastbound on Park Hill Avenue in Staten Island, when it was pulled over, and § 87(2)(b) was detained, by Police Officer Manuel Salvatierra of SRG 5 at 280 Park Hill Avenue (**Allegation A: Abuse of Authority--Other,** § 87(2)(g) Police Officer Salvatierra requested § 87(2)(b) license, which she did not have on her person. § 87(2)(b) provided her license information on a piece of paper, which Police Officer Salvatierra took from her and declined to return it to her when she requested that he do so. § 87(2)(b) asked Police Officer Salvatierra for his "information," which he did not provide (**Allegation B: Abuse of Authority—Refusal to provide name,** § 87(2)(g) (**Allegation C: Abuse of Authority—Refusal to provide shield number,** § 87(2)(g) Police Officer Salvatierra told § 87(2)(b) that he would summons her for driving without a license and told her to wait for him to return from his police car with the summons (**Allegation D: Abuse of Authority—Threat of summons,** § 87(2)(g) Police Officer Salvatierra then returned to his police car, stated "let's let her sit here for a while" and turned off his Body-worn camera (BWC) (**within Allegation A**). Police Officer Salvatierra then allegedly exited his police car and returned to § 87(2)(b) car without turning his BWC back on (**Allegation E: Abuse of Authority—Improper use of body-worn camera,** § 87(2)(g) § 87(2)(b) got out of her car and allegedly requested Police Officer Salvatierra's name and shield number, which he did not provide (**within Allegation C and Allegation D**). § 87(2)(b) was not summonsed or arrested.

In his CCRB interview January 6th, 2023, Police Officer Salvatierra provided an untruthful statement in stating that he did not leave his police car again after telling § 87(2)(b) to wait for him to return with her summons and had no contact with her after turning off his BWC (**Allegation F: Untruthful Statement—False official statement,** § 87(2)(g) § 87(2)(b).

BWC footage was received for Police Officer Salvatierra and Police Officer Leon Lewis, also of SRG 5 (BR 02). The footage is summarized in IA #28 (BR 03). TARU camera footage from a camera at the intersection of Sobel Court and Park Hill Avenue was received (BR 04) and summarized in IA #54 (BR 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police Officer Manuel Salvatierra detained § 87(2)(b).

Allegation (B) Abuse of Authority: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police Officer Manuel Salvatierra refused to provide his name to § 87(2)(b).

Allegation (C) Abuse of Authority: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police Officer Manuel Salvatierra refused to provide his shield number to § 87(2)(b).

Allegation (D) Abuse of Authority: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police Officer Manuel Salvatierra threatened to issue a summons to § 87(2)(b).

§ 87(2)(b) was interviewed by the CCRB on November 29th, 2022 (BR 06). Police Officer Salvatierra was interviewed by the CCRB on January 6th, 2023 (BR 07). Police Officer Lewis was interviewed by the CCRB on January 30th, 2023 (BR 08).

It is undisputed that Police Officer Salvatierra pulled over the vehicle § 87(2)(b) was driving for a broken headlight and that § 87(2)(b) did not provide her license to the officer. After Police Officer Salvatierra obtained § 87(2)(b) information and returned to the police vehicle, he returned to § 87(2)(b) vehicle and informed her that he was not going to issue her a summons. A dispute ensued between them, and Police Officer Salvatierra told § 87(2)(b) to wait while he returned with a summons. Police Officer Salvatierra returned to the police vehicle but did not issue a summons to § 87(2)(b) and never provided his name or shield number to her.

§ 87(2)(b) stated that she was driving her girlfriend's mother's car, which had a broken headlight, when she was pulled over by Police Officers Salvatierra and Lewis. Police Officer Salvatierra approached her driver's side window and informed her that she was being recorded on BWC, informed her that she had been pulled over for her broken headlight, and asked her for her license and registration. Police Officer Lewis was with Police Officer Salvatierra but did not say anything to § 87(2)(b). § 87(2)(b) realized she had forgotten her wallet, which included her driver's license, at home and did not know where the car's registration was kept. § 87(2)(b) explained this to Police Officer Salvatierra and offered to show him a photo of her driver's permit on her cellphone. Police Officer Salvatierra asked § 87(2)(b) to write down her name and date of birth, which § 87(2)(b) did. Police Officer Salvatierra and Police Officer Lewis returned to their police car, which was parked behind § 87(2)(b) car. Police Officer Salvatierra then returned to § 87(2)(b) car without Police Officer Lewis and told her that she was "good to go." § 87(2)(b) requested the napkin with her information on it back. Police Officer Salvatierra told § 87(2)(b) that he needed the napkin to make a report. § 87(2)(b) stated that she did not understand why Police Officer Salvatierra needed to make a report if he was not issuing her a ticket. Police Officer Salvatierra "became angry" and told § 87(2)(b) to "stay right here" and that he would "return with her ticket." Police Officer Salvatierra returned to his police car. Police Officer Salvatierra then returned to § 87(2)(b) driver's side window a third time and told her she could leave, without giving her a summons. She requested his name and shield number again multiple times but he replied, "Have a good day," and walked away without verbally providing it.

At timestamp 1:01 in Police Officer Salvatierra's BWC (BR 14), Police Officer Salvatierra approaches § 87(2)(b) driver's side window and tells her that she was pulled over for a broken headlight. Police Officer Lewis stands on the passenger side of § 87(2)(b) car. Police Officer Salvatierra requests the car's registration and § 87(2)(b) looks in the glove box of the car before telling Police Officer Salvatierra that the car is not hers and she does not know where the registration is. § 87(2)(b) also states that she forgot her driver's license at her home. Police Officer Salvatierra asks § 87(2)(b) to write her date of birth and full name on a piece of paper, which she does. Police Officer Salvatierra and Police Officer Lewis return to the police car and Police Officer Salvatierra does something on his phone. At timestamp 5:50 Police Officer Salvatierra leaves his police car and approaches § 87(2)(b) driver's window and tells her that he is going to "give her a break this time." Police Officer Lewis stands near the rear of § 87(2)(b) car. § 87(2)(b) requests the slip of paper with her name and birthdate on it back, and Police Officer Salvatierra declines to return it, explaining that he needs it to make a report. § 87(2)(b) and Police Officer Salvatierra discuss the piece of paper and why § 87(2)(b) did not have her license on her. At timestamp 6:35, Police Officer Salvatierra says that he needs to write a report that he stopped § 87(2)(b). § 87(2)(b) responds that she would "like [his] information too because I'm going to call and ask about that report." Police Officer Salvatierra responds, "give me a minute so we can come back with your ticket for not having a license." § 87(2)(b) begins to ask him another question, saying, "Can you give me..." and Police Officer Salvatierra says, "Give me a minute" and walks away from § 87(2)(b) car to his police car. Police Officer Salvatierra reenters his police car and tells Police Officer Lewis, who is seated in the driver's seat, "Let her sit

there for a minute” and turns off his BWC. Police Officer Salvatierra is not captured providing his name or shield number to § 87(2)(b) at any point during the incident.

Vehicle Stop Report #§ 87(2)(b) (BR 11), prepared by Police Officer Salvatierra, states that at 8:13 PM on November 14th, 2022, at 280 Park Hill Avenue, § 87(2)(b) vehicle was pulled over for a broken headlight and no enforcement action was taken.

Police Officer Salvatierra stated that § 87(2)(b) was pulled over for a broken headlight. Police Officer Salvatierra had no independent recollection of § 87(2)(b) asking for his shield number or name. After reviewing his BWC footage in his CCRB interview, Police Officer Salvatierra stated that he heard § 87(2)(b) ask him for his “information” and stated that he never provided his name or shield number to her verbally. Police Officer Salvatierra stated that he was standing “right in front” of § 87(2)(b) and that she could have seen his name and badge number on his chest. Police Officer Salvatierra stated that at the time he told § 87(2)(b) “Give me a minute so that I can get you a ticket for not having a license,” he did not actually intend to issue § 87(2)(b) a summons. He only told § 87(2)(b) to wait for a ticket because she “was very aggravated” and he wanted her to know that she could have received a summons. Police Officer Salvatierra stated that after returning to the police car and stating that he would “let § 87(2)(b) sit there for a while,” he then used the bullhorn connected to his police car to let § 87(2)(b) know she could leave.

Police Officer Lewis stated that he could not hear the conversation that occurred between Police Officer Salvatierra and § 87(2)(b) when he and Police Officer Salvatierra returned to § 87(2)(b) vehicle. When he and Police Officer Salvatierra returned to the Police Vehicle for the second time, Police Officer Salvatierra told him that § 87(2)(b) had “cursed him out,” which Police Officer Lewis did not hear occur. Police Officer Salvatierra provided Police Officer Lewis with no other information about § 87(2)(b) demeanor or what she said to him.

New York State Vehicle and Traffic Law 376-a (BR 15) states that if a vehicle is driven on a public street without working headlamps a Police Officer will stop the vehicle and issue a summons to the driver.

The courts have established that, even when a vehicle stop is justified at its inception due to a traffic violation, the ensuing “seizure must be reasonably related in scope, including its length, to the circumstances which justified the detention in the first instance.” Once the driver’s license has been obtained and various database checks have been conducted and the appropriate traffic tickets have been issued, the initial justification for seizing and detaining the vehicle and its occupants are exhausted. The continued involuntary detention of the vehicle’s occupants beyond this point is unjustified unless circumstances coming to the attention of officers following the initial stop furnish them with reasonable suspicion that the occupants were engaged in criminal activity. People v. Banks, 85 N.Y.2d 558 (1995) (BR 23).

It is undisputed that one headlight of the car § 87(2)(b) was driving was broken. § 87(2)(g)

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NYPD Administrative Guide Procedure 304-11 states that officers must clearly state their name, rank, command, and shield number to any civilians who request they do so.

It is undisputed Police Officer Salvatierra did not provide his name, shield number or any other identifying information to § 87(2)(b) despite her request for his information. § 87(2)(g)

New York State Vehicle and Traffic Law 509 (BR 16) states that driving without a valid driver's license is a misdemeanor, which can result in a fine or imprisonment.

§ 87(2)(g)

Allegation E Abuse of Authority: On November 14th, 2022, at 280 Park Hill Avenue in Staten Island, Police officer Manuel Salvatierra improperly used his body-worn camera.

Allegation (F) Untruthful statement: On January 6th, 2023, Police Officer Manuel Salvateirra provided a false official statement to the CCRB.

§ 87(2)(b) stated that, when Police Officer Salvatierra approached her car for the third and final time, the red light on his BWC was not illuminated. Police Officer Salvatierra told § 87(2)(b) to “have a nice day” and began to walk towards his police car. § 87(2)(b) got out of her car and asked Police Officer Salvatierra for his name and badge number four times. Police Officer Salvatierra did not respond to any of these requests. § 87(2)(b) approached Police Officer Salvatierra and attempted to take photos of him, but he turned and moved his body, making one of the photos she captured blurry. § 87(2)(b) asked Police Officer Salvatierra to stop moving so she could get a clear photo of him, but he continued to move around. After capturing a clearer photo, § 87(2)(b) walked back to her car and drove away.

§ 87(2)(b) provided two photos she took of Police Officer Salvatierra. The first photo (BR 09) shows the left side of Police Officer Salvatierra's torso and seems to be taken from straight on. Police Officer Salvatierra appears to be standing up, and a chain link fence is visible behind him. The right side of his body is illuminated red as though by police car lights. Police Officer Salvatierra is wearing a jacket, and on his left upper chest a patch with his last name and badge number is visible. Directly below the patch, Police Officer Salvatierra's BWC is visible. The light on the BWC is not illuminated. The second photo (BR 10) shows Police Officer Salvatierra's upper body and head from the left; he is standing in the street and a police car is visible behind him. The light of Police Officer Salvatierra's BWC is not on. The backgrounds of both photos are consistent with the environs of the incident location, as seen in the BWC footage.

Police Officer Salvatierra's BWC footage ends after he returns to the police vehicle for the second time and states, “Let her sit there for a minute.” No BWC captures Police Officer Salvatierra

exiting his police car, approaching § 87(2)(b) or speaking to § 87(2)(b) for a third time. No BWC footage shows § 87(2)(b) leaving her vehicle or taking photos of Police Officer Salvatierra at any point.

Police Officer Salvatierra stated he captured the entirety of this incident on his BWC and that he did not exit his police car after turning off his BWC. Police Officer Salvatierra stated that he never saw § 87(2)(b) exit her car or take his photograph. Police Officer Salvatierra stated that he did not recall § 87(2)(b) attempting to take his photo while asking for his name and shield number and did not recall refusing to stand still for such a photo. Police Officer Salvatierra stated that he did not interact with § 87(2)(b) other than telling her she was free to go over the bullhorn, after turning off his BWC. After being shown the photos § 87(2)(b) provided, which show that his BWC light was not illuminated and having her testimony about their interaction at this point in the incident summarized to him, Police Officer Salvatierra maintained that he never interacted with § 87(2)(b) after turning off his BWC. Police Officer Salvatierra did not provide any alternate explanation of when or how § 87(2)(b) could have obtained the photos of him.

Police Officer Lewis' statement was generally consistent with Police Officer Salvatierra's. Police Officer Lewis did not recall if § 87(2)(b) ever exited her vehicle but stated that she might have.

The investigation determined, by a preponderance of the evidence, that, after turning off his BWC, Police Officer Slavatierra exited his police vehicle a third time and interacted with § 87(2)(b) at which point § 87(2)(b) exited her vehicle and took photos of him. The BWC footage shows Police Officer Salvatierra telling § 87(2)(b) "Give me a minute so that I can get you a ticket for not having a license," and then returning to the police vehicle for the second time. Once inside the police vehicle, he says out loud, "Let her sit there for a while," and then turns off his BWC. The photos that § 87(2)(b) provided of Police Officer Salvatierra appear to have been taken by an individual who is standing outside both vehicles and is facing Police Officer Salvatierra, who is standing in front of the police vehicle. They therefore indicate that, at some point during this incident, § 87(2)(b) exited her car while Police Officer Salvatierra was also outside of his car and took photos of him. Furthermore, both photos show Police Officer Salvatierra's BWC from straight on and no indicator light is seen on the BWC in either photo. Police Officer Salvatierra denied that any such interaction occurred and stated that he captured the entirety of his interactions with § 87(2)(b) on his BWC. However, no moments where § 87(2)(b) is outside of the vehicle or takes photos of Police Officer Salvatierra are captured in his BWC footage. When shown these photos during his CCRB interview, Police Officer Salvatierra was unable to identify when in his account of the incident or his BWC footage those photos could have been taken. Therefore, given that the BWC footage undisputedly captures the beginning of the officers' stop of § 87(2)(b) vehicle and the entirety of Police Officer Salvatierra's interactions with her until the point when he returns to his vehicle the second time, the investigation credits § 87(2)(b) account that, after Police Officer Salvatierra told her to wait for her ticket and returned to the police vehicle for the second time, he exited a third time, now with his BWC off, and interacted with her again, during which time she exited her vehicle, followed him toward the police vehicle, and took photos of him.

NYPP Patrol Guide Procedure 212-123 (BR 18) states that officers must use their BWC to record all police action, including vehicle stops, and must record continuously until all police action is concluded.

§ 87(2)(g)

NYPD Administrative Guide 304-10 (BR 19) states that officers make a false official statement when they intentionally make a statement that they know to be untrue, which is material to the outcome of an investigation.

§ 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 20).
- Police Officer Salvatierra has been a member-of-service for 15 and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A request for Notice of Claim was submitted to the New York City Comptroller's Office on February 1st, 2023 (BR 21). Any responsive Notice of Claim will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator:  Investigator Madeleine Matz 2/2/2023
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 1/16/2024
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date